

26STCV06584 26STCV06584

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV06584 Hearing Date: July 14, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV06854

MARK

A YBARRA vs RIDGEVIEW MANOR, INC., et al.

July 14,

2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANTS, MANSERMAR, INC. AND SOPHEA FOURNOUZIAN'S DEMURRER TO PLAINTIFF'S COMPLAINT. DEFENDANTS MANSERMAR, INC.

AND SOPHEA FOURNOUZIAN'S MOTION TO STRIKE PORTIONS PLAINTIFFS' COMPLAINT.

RULING:

The Court overrules the
Demurrer.

The Court denies the Motion.

Twenty
days to answer.

Plaintiff to give notice.

I.

BACKGROUND

On March 3, 2026, MARK
ANTHONY YBARRA (Plaintiff) filed a Complaint against RIDGEVIEW MANOR, INC.,
MANSERMAR, INC. and SOPHEA FOURNOUZIAN, listing Causes of Action for:

1.

BREACH OF CONTRACT

2.

BREACH OF THE COVENANT OF QUIET ENJOYMENT

3.

BREACH OF THE IMPLIED WARRANTY OF HABITABILITY

4.

NUISANCE

5.

NEGLIGENCE

6.

VIOLATION OF BUSINESS AND PROFESSIONS CODE SECTION 17200 ET SEQ.

7. HARASSMENT IN VIOLATION OF CIVIL CODE

§1940.2

8.

DISCRIMINATION IN VIOLATION OF FEHA

9.

HARASSMENT IN VIOLATION OF FEHA

10.

RETALIATION IN VIOLATION OF FEHA

11.

RETALIATION.

Plaintiff alleges that he is a tenant at 14620 Gledhill Street, Panorama City, and the owner and manager defendants are liable for uninhabitable conditions and harassment of Plaintiff because he complained and is a Latino.

On June 15, 2026, MANSERMAR, INC. and SOPHEA FOURNOUZIAN (Defendants) filed the Demurrer to the Complaint's Eighth, Ninth and Tenth Causes of Action, and the Motion to Strike punitive damages allegations.

Plaintiff opposes by arguing allegation sufficiency, or alternatively requests leave to amend. Specifically, Plaintiff states that the Complaint adequately alleges that Defendants retaliated against him and discriminated because he is Latino, without any contradiction. Regarding punitive damages, Plaintiff counterargues that punitive damages are based upon allegations other than just contract breach, and corporate authorization and ratification may be alleged generally.

II.

LEGAL STANDARD

Demurrers are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-880.) A complaint does not necessarily need to be a model of pleading but needs sufficient factual allegations. (E.g., State v. The Superior Court (2001) 87 Cal.App.4th 1409, 1411.)

“ ‘Even as against a special demurrer, a plaintiff is required only to “set forth in his complaint the essential facts of his case with reasonable precision and with particularity sufficiently specific to acquaint the defendant of the nature, source, and extent of his cause of action.” ’ ” (Elder v. Pac. Bell Tel. Co. (2012) 205 Cal.App.4th 841, 858.) Regarding uncertainty, “[t]here is no need to require specificity in the pleadings because ‘modern discovery procedures necessarily affect the amount of detail that should be required in a pleading’ ” (Ludgate Ins. Co. v. Lockheed Martin Corp. (2000) 82 Cal.App.4th 592, 608.) “[S]pecific dates and details . . . are properly addressed during discovery, not on demurrer.” (People v. Highland Fed. Sav. & Loan (1993) 14 Cal.App.4th 1692, 1716.)

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Ibid., § 437.)

FEHA authorizes lawsuits by persons injured by discriminatory housing practices. (Sisemore v. Master Financial, Inc. (2007) 151 Cal.App.4th 1386, 1392, 1424 (Sisemore).) “It shall be unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of that person having exercised or enjoyed, or on account of that person having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by Section 12955 or 12955.1.” (Gov. Code § 12955.7.) “[H]ousing discrimination under FEHA may be established either by disparate treatment or by disparate impact.” (Sisemore, supra, 151 Cal.App.4th at p. 1420.) Under Government Code Section 12955, based upon harassment creating a hostile environment, courts look at all of the circumstances, including any unreasonable interference with the tenant's enjoyment of housing conditions. (Brown v. Smith (1997) 55 Cal.App.4th 767, 784.) And it shall be unlawful for any owner of rented housing to retaliate against a person who has opposed certain unlawful practices. (Gov. Code § 12955(f).)

III.

ANALYSIS

A.

Demurrer

Defendants argue that the Eighth, Ninth and Tenth Causes of Action fail to allege Defendants' actions based upon being Latino and are uncertain by inconsistently alleging that actions were based upon complaining. Additionally, Defendants maintain that Plaintiff uncertainly makes allegations referencing "Defendant" and "Defendants", at Paragraphs 117 through 124 of the Complaint.

First, the Court determines that the Complaint alleges that Defendants' acted both based upon race and complaining, without being inconsistent, as one is not mutually exclusive of the other. (E.g., Complaint, ¶ 32 ("began using all forms of pretext to force Latino tenants to vacate the Apartment in favor of non-Latinos."), 46 ("as a result of Plaintiff's ongoing demands for equal treatment and a habitable living environment SOPHEA AND CORPORATE DEFENDANTS and each of them targeted Plaintiff with retaliatory actions, including infraction write-ups, false accusations, and threats of eviction.")) (Cf. (Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal.App.3d 593, 604, 606 ["We can find nothing in this evidence which constitutes admissions so inconsistent with facts alleged ... that would render the complaint demurrable."].))

Second, the Court concludes that alleging Defendants as a group is permissible pleading and the Complaint identifies a Defendant with other Defendants. (E.g., Complaint, ¶ 32 ("SOPHEA and CORPORATE DEFENDANTS began using all forms of pretext to force Latino tenants to vacate the Apartment in favor of non-Latinos.")) A demurrer should not be sustained on the ground of uncertainty regarding which defendant committed the alleged conduct, where the pleading alleged that all defendants were responsible. (Dillard v. County of Kern (1943) 23 Cal.2d 271, 279 ["The complaint charges all the defendants and their agents and servants with having negligently operated . . . the truck. Liberality in pleading compels the conclusion that the demurrer should not have been sustained. Defendants were in a superior position to know...."].))

B.

Motion to Strike

First, Defendants assert

that punitive damages are not recoverable with regard to negligence-based claims. However, that is an incomplete statement of law. A tort involving negligence, together with conduct or omissions that one knows or should know probably will result in harm, can support an award of punitive damages. (Nolin v. National Convenience Stores, Inc. (1979) 95 Cal.App.3d 279, 286-288 [defendant's inattention to danger showed a complete lack of concern for the likelihood of personal injuries at defendant's premises].)

Second, Defendants argue that punitive damages are not recoverable as to contractual claims. Actually, "if the action is one in tort, punitive damages may be recovered upon a proper showing of malice, fraud or oppression even though the conduct constituting the tort also involves a breach of contract." (Fletcher v. Western National Life Ins. Co. (1970) 10 Cal.App.3d 376, 400.)

Third, they insist that the Complaint lacks sufficient factual allegations to justify punitive damages against the corporate Defendant. But general pleading is allowed, as is the case with paragraphs 12 through 13 of the Complaint. Alleging that persons acted "with the permission and consent" of all defendants including corporate defendants is sufficient to plead corporate employer liability for punitive damages. (O'Hara v. Western Seven Trees Corp. (1977) 75 Cal.App.3d 798, 806 ["it was alleged that the misrepresentations were made by persons who acted 'with the permission and consent' of all the defendants. For the purpose of meeting a general demurrer, this was a sufficient allegation that the corporations had authorized their agent's acts; a corporation is liable for punitive damages when it authorizes the wrongful act."]; Kisesky v. Carpenters' Trust (1983) 144 Cal.App.3d 222, 235 [allegations of agents acting in scope of employment with employer's permission and consent were sufficient]. Cf. Scannell v. County of Riverside (1984) 152 Cal.App.3d 596, 614 [insufficiency where a complete failure to plead acts done with the knowledge or under express direction or ratification of officer, director or managing agent].)

IV.

CONCLUSION

The Court overrules the

Demurrer and denies the Motion to Strike.